

UNITED STATES DISTRICT COURT, WESTERN DISTRICT OF MICHIGAN

ANDREW J. PIGORS, Plaintiff, v. HON. JENNY L. MCNEILL, et al., Defendants.

Case No. TBD-2025

<!-- IN FORMA PAUPERIS APPLICATION Pigors v. McNeill et al. United States District Court, Western District of Michigan 28 USC Section 1915 PRIVILEGED -- ATTORNEY-CLIENT WORK PRODUCT (Pro Se Equivalent) Generated: 2026-03-04 -->

UNITED STATES DISTRICT COURT

WESTERN DISTRICT OF MICHIGAN

SOUTHERN DIVISION

|||---||| **ANDREW J. PIGORS**, | Case No. **[TO BE ASSIGNED]** || *Plaintiff*, ||| v.
| **APPLICATION TO PROCEED** || | **IN FORMA PAUPERIS** | | **HON. JENNY L.**
MCNEILL, et al., | **28 USC Section 1915** || *Defendants.* ||

APPLICATION TO PROCEED IN FORMA PAUPERIS

Plaintiff Andrew J. Pigors hereby applies, pursuant to 28 USC Section 1915(a), for leave to commence the above-captioned civil rights action without prepayment of the filing fee. In support of this Application, Plaintiff states as follows:

I. STATUTORY AUTHORITY

* 28 USC Section 1915(a)(1) provides: "any court of the United States may authorize the commencement, prosecution or defense of any suit, action or proceeding . . . without prepayment of fees or security therefor, by a person who submits an affidavit that includes a statement of all assets such prisoner [or person] possesses that the person is unable to pay such fees or give security therefor."

* The right to proceed IFP in civil rights cases is well-established. *Adkins v E.I. DuPont de Nemours & Co*, 335 US 331, 339-40 (1948).

II. FINANCIAL AFFIDAVIT

I, Andrew J. Pigors, being duly sworn, depose and state as follows:

A. Employment and Income

- * Current employment status: _____
- * Current employer (if any): _____
- * Monthly gross income: \$ _____
- * Monthly net income (after taxes): \$ _____
- * Other sources of income:
- * ☐ Social Security: \$ _____/month
- * ☐ Disability: \$ _____/month
- * ☐ Unemployment: \$ _____/month
- * ☐ Child support received: \$ _____/month
- * ☐ Public assistance: \$ _____/month
- * ☐ Other (specify): \$ _____/month

B. Monthly Expenses

Expense Amount	----- -----	Rent/mortgage \$_____	Utilities
\$_____	Food \$_____	Transportation \$_____	Medical/health insurance
\$_____	Child support payments (ordered) \$_____	Clothing \$_____	Other
(specify) \$_____	Total Monthly Expenses	\$_____	

C. Assets

- * Bank accounts:
- * Checking: \$_____ (Bank name: _____)
- * Savings: \$_____ (Bank name: _____)
- * Real property: _____

* Value: \$_____ | Mortgage/liens: \$_____

* Vehicles:

* Make/model/year: _____ | Value: \$_____ | Loan: \$_____

* Other assets (stocks, bonds, retirement accounts, etc.): _____

D. Liabilities and Debts

Creditor	Amount Owed	Monthly Payment						
_____	\$_____	\$_____		_____	\$_____	\$_____		_____
\$_____	Total Liabilities			\$_____	\$_____			

E. Public Assistance

* I currently receive the following public assistance (check all that apply):

* ☐ Supplemental Security Income (SSI)

* ☐ Temporary Assistance for Needy Families (TANF)

* ☐ Supplemental Nutrition Assistance Program (SNAP/Food Stamps)

* ☐ Medicaid

* ☐ Housing Assistance (Section 8, etc.)

* ☐ Other: _____

F. Dependents

* Number of dependents: _____

* Names and ages:

* L.D.W., age 3 (minor daughter -- custody denied 571+ days)

* _____

III. STATEMENT OF INABILITY TO PAY

* The current filing fee for a civil complaint in the Western District of Michigan is **\$405.00** (\$350 filing fee + \$55 administrative fee).

* Based on the financial information stated above, I am unable to pay the filing fee without depriving myself of the necessities of life.

* The financial hardship is compounded by:

* (a) Child support obligations imposed by the state court;

* (b) Legal costs incurred in defending against unconstitutional orders in state court;

* (c) Lost income resulting from the ongoing custody proceedings;

* (d) Housing instability resulting from related proceedings.

* I have not been able to retain counsel because:

* (a) I cannot afford attorney's fees;

* (b) The complexity of the case (multiple proceedings, constitutional issues) makes it difficult to find pro bono representation;

* (c) The underlying state proceedings have consumed available resources.

IV. NATURE OF ACTION

* This is a civil rights action under 42 USC Section 1983, 1985, and 1986 challenging the deprivation of fundamental constitutional rights -- specifically, the parent-child relationship -- through a pattern of ex parte orders entered without notice, without evidentiary hearing, and without constitutionally adequate process.

* The action is not frivolous. It is based on:

* (a) Documented pattern of 24 of 55 orders (44%) entered ex parte;

* (b) 571+ consecutive days of denied parenting time;

* (c) No evidentiary hearing conducted in over two years of proceedings;

* (d) Five ex parte orders entered on a single day (August 8, 2025);

* (e) Clear violations of established constitutional standards.

* The action is not brought in bad faith. It seeks vindication of fundamental constitutional rights recognized by the Supreme Court of the United States in *Troxel v Granville*, 530 US 57 (2000), *Santosky v Kramer*, 455 US 745 (1982), and *Stanley v Illinois*, 405 US 645 (1972).

V. PRIOR IFP APPLICATIONS

* I [have / have not] previously applied for IFP status in any federal court.

* If yes: Court: _____ | Case No.: _____ | Result: _____

VI. PRIOR LITIGATION

* I [have / have not] previously filed civil actions in federal court.

* If yes, list all prior federal cases:

Case	Name	Court	Case	No.	Outcome	IFP?
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VII. REQUEST

WHEREFORE, Plaintiff respectfully requests that this Court:

* Grant this Application to Proceed In Forma Pauperis.

* Waive the \$405.00 filing fee.

* Authorize the U.S. Marshals Service to effect service of process upon all Defendants at the expense of the United States, pursuant to 28 USC Section 1915(d) and FRCP 4(c)(3).

* Permit Plaintiff to prosecute this action without prepayment of costs.

VIII. VERIFICATION

I declare under penalty of perjury under the laws of the United States of America (28 USC Section 1746) that the foregoing financial information is true and correct to the best of

my knowledge.

Executed on: _____

_____ Andrew J. Pigors Plaintiff, *Pro Se* [ADDRESS]
[TELEPHONE] [EMAIL]

IX. SUPPORTING DOCUMENTATION CHECKLIST

The following supporting documents should be attached to this Application:

- * ☐ **Most recent tax return** (or statement that no return was filed)
- * ☐ **Pay stubs** (last 3 months, if employed)
- * ☐ **Bank statements** (last 3 months, all accounts)
- * ☐ **Public assistance documentation** (award letters, benefit statements)
- * ☐ **Child support order** (showing payment obligations)
- * ☐ **Lease/rental agreement or mortgage statement**
- * ☐ **Utility bills** (recent)
- * ☐ **Any other documentation of financial hardship**

NOTE: The Court may require additional financial documentation. Respond promptly to any Court requests for additional information.

X. IMPORTANT NOTES

Court's IFP Review Standard (28 USC Section 1915(e)(2))

The Court will review the complaint upon granting IFP status and must dismiss if:

- * The action is frivolous or malicious;
- * The complaint fails to state a claim upon which relief may be granted; OR
- * The complaint seeks monetary relief from a defendant who is immune.

This complaint is designed to survive Section 1915(e)(2) screening by:

- * Presenting non-frivolous constitutional claims supported by documented evidence;
- * Meeting the Iqbal/Twombly plausibility standard;
- * Addressing judicial immunity directly and seeking relief that is not barred (injunctive/declaratory).

Service of Process

If IFP is granted, the U.S. Marshals Service will serve all Defendants at no cost to Plaintiff under 28 USC Section 1915(d). Plaintiff must provide:

- * Completed summons for each Defendant.
- * Copies of the complaint for each Defendant.
- * Known addresses for each Defendant.

Prepared: 2026-03-04 | Andrew J. Pigors, Pro Se